No. M2020-00635-COA-R3-CV

IN THE COURT OF APPEALS OF TENNESSEE
MIDDLE SECTION AT NASHVILLE

METROPOLITAN GOVERNMENT OF NASHVILLE AND DAVIDSON COUNTY, TENNESSEE,
Appellant/Plaintiff,

v.

KALLIE KAY DREHER,
Appellee/Defendant.

On Appeal from the Eighth Circuit Court for the Twentieth Judicial District, Davidson County Circuit Court, Case No. 19C815

AMICUS CURIAE BRIEF OF THE BEACON CENTER IN SUPPORT OF KALLIE KAY DREHER

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TABLE OF CONTENTS

Table of Authorities 3

INTEREST OF THE AMICUS CURIAE 5

JURISDICTIONAL STATEMENT, STATEMENT OF THE CASE, FACTS, AND ISSUES PRESENTED FOR REVIEW 5

STANDARD OF REVIEW 6

SUMMARY OF THE ARGUMENT 6

ARGUMENT 7

I. MS. DREHER IS CONSTITUTIONALLY PROTECTED BY THE DOUBLE JEOPARDY CLAUSE FROM METRO'S EFFORTS TO PUNISH HER TWICE. 9

A. *Miles* settled the present question. 9

B. Metro fails to show that *Miles* is not controlling. 11

C. Justice Harbison's opinion in *Miles* does not help Metro. 12

1. Metro relies on the dissenting portion of Justice Harbison's opinion. 12

2. Justice Harbison's opinion cannot be reconciled with established double jeopardy protections. 13

3. The double jeopardy clause does not hamper public order. 16

D. *City of Chattanooga v. Davis*, 54 S.W.3d 248 (Tenn. 2001) helps Metro even less. 18

1. *Davis* did not complicate *Miles*. 18

2. *Davis* further supports the trial court's ruling that double jeopardy attached. 19

E. Ms. Dreher risks punishment regardless of how Metro labels it. 21

CONCLUSION 24

Certificate of Compliance 25

Certificate of Service 26

TABLE OF AUTHORITIES

Constitutional Provisions

Tenn. Const. Art. I § 10 8
Tenn. Const. Art. VI, section 14 7

Statutes

28 U.S.C. § 2332(i) 17
Tenn. Code Ann. § 39-13-202 17
Tenn. Code Ann. § 40-7-118(b)(1) 15
Tenn. Code Ann. § 40-35-110(d) 21
Tenn. Code Ann. § 40-35-111(e) 21, 23
Tenn. Code Ann. § 55-8-152(f)(2) 23

Federal Cases

Breed v. Jones, 421 U.S. 519 (1975) 14, 16, 21, 22
Ex parte Lange, 85 U.S. 163 (1873) 15
Giaccio v. Pennsylvania, 382 U.S. 399 (1966) 22
Green v. United States, 355 U.S. 184 (1957) 14
Pennywell v. McCarrey, 9 Cir., 255 F.2d 735 (9th Cir. 1958) 8
Price v. Georgia, 398 U.S. 323 (1970) 22
Sessions v. Dimaya, 138 S. Ct. 1204 (2017) 22
United States v. Dickerson, 168 F. Supp. 899 (D.C. Cir. 1958) ... 10, 15

Tennessee Supreme Court Cases

City of Chattanooga v. Davis, 54 S.W.3d 248 (Tenn. 2001) ..... passim
Colonial Pipeline Co. v. Morgan, 263 S.W.3d 827 (Tenn. 2008) 6
Hayes v. Gibson Cty., 288 S.W.3d 334 (Tenn. 2009) 6
Hughes v. New Life Dev. Corp., 387 S.W.3d 453 (Tenn. 2012) 23
Livesay v. Tennessee Bd. of Exam'rs in Watchmaking, 322 S.W.2d 209 (Tenn. 1959) 23

Metro Gov't of Nashville & Davidson Cty. v. Miles, 524 S.W.2d 656 (Tenn. 1975) ..... passim

Seals v. H & F, Inc., 301 S.W.3d 237 (Tenn. 2010) 6

State v. Pennington, 952 S.W.2d 420 (Tenn. 1992) 14

State v. Walker, 12 S.W.3d 460 (Tenn. 2000) 15

Court of Appeals (Unpublished)

Smith v. Metro Gov't of Nashville & Davidson Cty., 2015 Tenn. App. LEXIS 219 (Tenn. Ct. App. Apr. 13, 2015) 8

State v. Tommy R. Powell, No. M2001-02955-CCA-R3-CD, 2002 Tenn. Crim. App. LEXIS 367 (Tenn. Crim. App. Apr. 24, 2002) 23

Other Authorities

Metro Code § 17.16.070.U.4.l.vi 7, 21, 24

Metro Code § 17.40.610 ..... 14, 21

Rules

Tenn. R. App. P. 27 5

Tenn. R. App. P. 31(a), (b) 5

INTEREST OF THE AMICUS CURIAE

The Beacon Center of Tennessee is a nonprofit, nonpartisan, and independent Section 501(c)(3) organization dedicated to principles of free markets, individual liberty, and limited government. Property rights and the protection of personal liberty are central to its goals. The Beacon Center's Legal Foundation is dedicated to promoting an interpretation of the Tennessee Constitution consistent with its original public meaning. Through the Legal Foundation, the Beacon Center litigates and files Amicus briefs to, among other things, defend property rights and the constitutional protections afforded individual Tennesseans before they may be deprived of life, liberty, or property.

The interest of Amicus lies in ensuring that (1) the personal liberty and property rights of Tennesseans are protected and (2) constitutional guarantees for those who face significant penalties involving fines – irrespective of how the government choses to label it – are not weakened.

Amicus conditionally files this brief contemporaneously as an exhibit attached to the accompanying motion for leave to file. *See* Tenn. R. App. P. 31(a) (2020).

JURISDICTIONAL STATEMENT, STATEMENT OF THE CASE, FACTS, AND ISSUES PRESENTED FOR REVIEW

Amicus relies on the jurisdictional statements of the parties, statements of the case, and issues presented for review. *See* Tenn. R. App. P. 27(b), 31(b) (2020).

STANDARD OF REVIEW

The issue raised here is a question of law subject to de novo review, and the Court owes no presumption of correctness to the lower court's decision. *See Seals v. H & F, Inc.*, 301 S.W.3d 237, 241 (Tenn. 2010) ("Our scope of review for questions of law is de novo."). This standard applies to both statutory and constitutional interpretation. "Issues of statutory construction are reviewed de novo with no presumption of correctness attaching to the rulings of the court below." *Hayes v. Gibson Cty.*, 288 S.W.3d 334, 337 (Tenn. 2009). "Issues of constitutional interpretation are questions of law, which [courts] review de novo without any presumption of correctness given to the legal conclusions of the courts below." *Colonial Pipeline Co. v. Morgan*, 263 S.W.3d 827, 836 (Tenn. 2008).

SUMMARY OF THE ARGUMENT

The issue in this case is straightforward. Can Metro continue to seek fines against Ms. Dreher for violating a city law Metro after failed once to establish a violation?

The answer is equally straightforward. The Tennessee Supreme Court has already held that Metro's fines are punishment within the meaning double jeopardy clause, thereby preventing Metro from seeking a second chance at punishing Ms. Dreher. *See Metro Gov't of Nashville & Davidson Cty. v. Miles*, 524 S.W.2d 656, 659-660 (Tenn. 1975). Metro's goal is to inject doubt into *Miles* where none exists and

to assume the power to fine free from constitutional limits. That is the unstated issue in this case.

This Court should reject Metro's effort to shirk the constitutional protections afforded by the double jeopardy clause for violations of an ordinance that Metro itself calls a "penalty." *See* Metro Code § 17.16.070.U.4.l.vi. Metro fails to establish that *Miles* is anything less than controlling in this case. Justice Harbison's opinion in *Miles* – relied upon by Metro – is not a basis for doubt. The portion of Justice Harbison's opinion that Metro urges this Court to incorporate into law is actually a dissent. Adoption of Justice Harbison's dissent would undermine double jeopardy protections in well-established contexts. Metro also fails to complicate the uncomplicated by drawing from excessive fines cases, *see* Tenn. Const. Art. VI, section 14, when *Miles* settled the double jeopardy question. Even if those cases were considered, they only serve to show that Metro's fines are punishment, and not remedial. Observance of double jeopardy protections will not sabotage Metro's legitimate aim in securing public order.

Ms. Draher's property and right to earn a living hang in the balance. They cannot be set aside on the basis of tidy, civil/criminal distinctions that overlook what she risks.

Metro is entitled to enact laws under its police powers. Those powers have constitutional limits it is obliged to follow.

ARGUMENT

This case is about whether the Metropolitan Government of Nashville and Davidson County ("Metro") can deny citizens

constitutional protection from double jeopardy by characterizing punishments for infractions of city-ordinances as civil. *See* Tenn. Const. Art. I § 10. This issue is decided on the basis of settled law.

Since at least 1975 the law in Tennessee has been that double jeopardy protects citizens from successive proceedings for violating Metro ordinances punishable by fines. *See Metro Gov't of Nashville & Davidson Cty. v. Miles*, 524 S.W.2d 656, 659-660 (Tenn. 1975) ("We hold that the imposition of a Fine is punishment.") (quoting *Pennywell v. McCarrey*, 9 Cir., 255 F.2d 735 (9th Cir. 1958)).

This precedent is longstanding. No court has ever questioned it, or shown any indication that it is anything less than binding. In 2001, the Tennessee Supreme Court affirmed *Miles* when it found that Metro's civil fines also implicate the excessive fines clause. *See City of Chattanooga v. Davis*, 54 S.W.3d 248, 261 (Tenn. 2001) (citing *Miles* – Metro fines "trigger[] the protection of the double jeopardy clause to prevent a second 'punishment' in the state courts for the same offense.") As recently as 2015, this Court acknowledged that "[d]ouble jeopardy can also apply to a general sessions court finding of no violation of a municipal ordinance." *Johnny L. Smith v. Metro Gov't of Nashville & Davidson Cty.*, No. M2014-01325-COA-R3-CV, 2015 Tenn. App. LEXIS 219, at *3 (Tenn. Ct. App. Apr. 13, 2015) (no app. filed) (citing *Miles*, 524 S.W.2d at 660). The rule established in *Miles* ought to be beyond question.

Metro questions *Miles*. That is, Metro questions whether double jeopardy denies Metro a second chance to fine Ms. Draher, even though that is the holding in *Miles*. Metro then proposes an unnecessary test

derived from a dissent in *Miles* and inapplicable excessive fines cases that would operate to significantly cabin the holding in *Miles*. In effect, Metro is trying to undermine or overrule *Miles*, at least when it comes to zoning infractions.

This Court should reject Metro's efforts. No reason – legal or practical — exits to revisit the longstanding rule protecting Tennesseans from successive proceedings which allege violations of local ordinances. Metro had its chance to prove Ms. Dreher violated the law. It failed to "put adequate proof." (TR 2, 60). Ms. Dreher should not be forced to run successive gauntlets so Metro can get its act together.

I. MS. DREHER IS CONSTITUTIONALLY PROTECTED BY THE DOUBLE JEOPARDY CLAUSE FROM METRO'S EFFORTS TO PUNISH HER TWICE.

The trial court correctly applied *Miles*, ruling that double jeopardy bars Metro from seeking penalties against Ms. Draher a second time. Part A shows that *Miles* is directly on point and controls the outcome in this case. Part B shows that Metro's efforts to call *Miles* into doubt are unsuccessful. Part C shows that Metro's reliance upon Justice Harbison's opinion in *Miles* is faulty. Part D shows that *City of Chattanooga v. Davis*, 54 S.W.3d 248 (Tenn. 2001) harms Metro's efforts to deny Ms. Draher her protection from double jeopardy. Part E shows that any attempt to subvert the importance of what is at stake for Ms. Draher based on an obscured civil/criminal distinction is outdated and should fail.

A. *Miles* settled the present question.

Miles is the seminal case on whether jeopardy attaches to proceedings alleging violations of local ordinances punishable by fines.

Yet Metro argues that *Miles* was not conclusive on the question of whether it can seek a successive proceeding against Ms. Draher so long as it only seeks to punish her with fines. (Metro br. at 12-15).

Metro's argument is impossible to square with *Miles*. The holding in *Miles*, where Metro was the defendant, was:

> We, therefore, hold that a proceeding in a municipal court for the imposition of a fine upon a person for allegedly violating a city ordinance is criminal rather than civil in substance, in that, it seeks punishment to vindicate public justice and, therefore, constitutes jeopardy under the double jeopardy clauses of the Tennessee and Federal Constitutions, and, consequently, the alleged offender, whether acquitted or convicted, cannot again be tried for the same offense in a state trial court of general jurisdiction over the timely objection of the defendant.

Id. at 660 (emphasis added). The Supreme Court left Metro no room to make this argument.

Whether Metro calls the fines civil or criminal is not relevant. *Id.* at 659 (quoting *United States v. Dickerson*, 168 F. Supp. 899 (D.C. Cir. 1958) ("Precious constitutional rights cannot be diminished or whittled away by the device of ... modifying the nomenclature of legal proceedings.")). If Metro pursues fines for violating a city ordinance, then it is "criminal rather than civil in substance," double jeopardy attaches, and the citizen "cannot again be tried for the same offense." *Id.* at 660. That is the holding in *Miles*.

In arguing at length for the adoption of a test in order to determine whether a Metro fine is remedial or punitive (Metro br. at 12-18), Metro entirely overlooks that the Court already addressed whether Metro's fines implicate double jeopardy. While Metro discusses

Miles at length, Metro elides past the most important part – the actual result.

Miles controls this case. Ms. Dreher ought to be able to rest assured that she is free from any further possible punishments. She is not. Her uncertainty does not owe to any lack of clarity from *Miles*.

B. Metro fails to show that *Miles* is not controlling.

Metro labors mightily to draw ambiguity from an unambiguous holding. It is unsuccessful.

Metro argues that "[t]he issue of what constitutes a remedial or punitive action appears to be a case of first impression in Tennessee." (Metro br. at 13) Metro is mistaken. *See Miles*, 524 S.W.2d at 660 ("a proceeding in a municipal court for the imposition of a fine upon a person for allegedly violating a city ordinance is criminal rather than civil in substance"). If Metro has difficulty finding "any cases that have analyzed the issue post-*Miles*," *id.*, it is not because it is an issue of first impression. It is because *Miles* had the last word.

In no decision since has any court expressed any confusion about the holding in *Miles*. Metro unsuccessfully tries to sow confusion by relying on two sources: Justice Harbison's dissent in *Miles* and *City of Chattanooga v. Davis*, 54 S.W.3d 248 (Tenn. 2001). Both do more to harm than help Metro.

Whatever ambiguities exist over whether a fine implicates the excessive fines clause do not attend the double jeopardy clause, as will be discussed more fully in Part D below.

C. Justice Harbison's opinion in *Miles* does not help Metro.

Subpart 1 establishes that Metro is asking this Court to incorporate a dissent into the jurisprudence. Subpart 2 shows that Justice Harbison's dissent contains recommendations that squarely conflict with established precedents. Subpart 3 demonstrates that upholding the trial court will not unduly restrict Metro's ability to protect the public.

1. Metro relies on the dissenting portion of Justice Harbison's opinion.

Metro relies on a portion of Justice Harbison's opinion that was a dissent. (Metro br. at 13) It should not be made the law of the land.

While Metro generally acknowledges that Justice Harbison's opinion was both a concurrence and a dissent, *see id.*, Metro then proceeds to quote the portion of the opinion that argues that proceedings "instituted merely by citation or summons," and zoning ordinances ought to "be per se civil" and not subject to the double jeopardy claim. (Metro br. at 14) Metro makes no effort to say where the concurrence ends and the dissent begins.

Metro is citing to the dissenting portion of Justice Harbison's opinion. Justice Harbison's concurrence was narrow. He concurred that Metro would not have the right to appeal a "violation of a penal ordinance." *Id.* (Harbison, J., concurring and dissenting); *see also id.* at 663 ("I concur in the result reached in the principal opinion to the effect that the Metropolitan Government should not be allowed a right of appeal from acquittal after a trial on the merits for violations of a penal ordinance."). But he disagreed that Metro's fines were penal. *See id.* at

661 ("this result is not brought in the present case by the wording of the Metropolitan Charter. ...); *id.* at 662 (Not all proceedings for violations of city ordinances are criminal in nature. .... I would limit the holding of the present case to ordinances which are clearly penal in nature."). In other words, Justice Harbison disagreed with every part of the majority opinion other than the acknowledgment that penal violations trigger double jeopardy.

That makes every other part of Justice Harbison's opinion a dissent. The portion of Justice Harbison's opinion quoted by Metro is not to the part where he joined the majority. (Metro br. at 14, 21) The portion Metro quotes is in conflict with the majority opinion because Justice Harbison explaining why Metro's fines should not be considered penal. This means it is in dissent. Both times Metro cites it as a "concurrence." Metro errs. There is no validity to the portion of this opinion that Metro asks this Court to adopt and make part of the jurisprudence, thereby cabining an important constitutional right.

Metro is effectively asking this Court to overrule or significantly limit *Miles* and adopt an argument that lost in 1975.

2. Justice Harbison's opinion cannot be reconciled with established double jeopardy protections.

The broad exemptions Metro seeks to smuggle in through Justice Harbison's dissent are squarely in conflict with established double jeopardy jurisprudence

By hitching its cart to Justice Harbison, Metro asks this Court to narrow a vital constitutional protection. In the *Miles*, the Court itself articulated a capacious view of the double jeopardy clause. 524 S.W.2d

at 658 ("Such an ancient right is not to be given a narrow construction."); *see also Breed v. Jones*, 421 U.S. 519, 528 (1975) (double jeopardy clause "has long been construed to mean something far broader than its literal language"). The reason why double jeopardy protection exists is to ensure that individuals like Ms. Draher cannot be overwhelmed by the superior resources of the government. *See Breed*, 421 U.S. at 529-530 ("Because of its purpose and potential consequences, and the nature and resources of the State, such a proceeding imposes heavy pressures and burdens – psychological, physical, and financial – on a person charged."); *State v. Pennington*, 952 S.W.2d 420, 422 (Tenn. 1992) (quoting *Green v. United States*, 355 U.S. 184, 187-88 (1957) ("[T]he state with all its resources and power should not be allowed to make repeated attempts to convict an individual for an alleged offense, thereby subjecting him to embarrassment, expense and ordeal ....")). No one can doubt that if Ms. Draher were to face another proceeding she would be subjected to the sort of "heavy pressures and burdens" that the double jeopardy clause is supposed to prevent.

Metro, relying on Justice Harbison, asks that all violations of zoning laws be treated as "per se civil." (Metro br. at 14) However, Metro has made violating its zoning laws a misdemeanor, "punishable by law." Metro. Code § 17.40.610. Metro can imprison persons for violating zoning laws. It cannot avoid having to grapple with double jeopardy when such punishment is on the table. In *Miles* itself, the Tennessee Supreme Court affirmed the well-known rule that "double jeopardy protection applies to 'felonies, minor crimes and

misdemeanors.'" *Id.* at 559 (emphasis added) (quoting *Ex parte Lange*, 85 U.S. 163, 168-69 (1873)). An exemption for zoning laws cannot be squared with the protections afforded to those accused of misdemeanants.

In sum, Metro has asked this Court to declare an ordinance that Metro itself calls a misdemeanor, "punishable by law," to be civil and remedial. On the basis of these semantics, Metro proposes to be able to place accused misdemeanants who face potential jail time in double jeopardy. This approach is precisely the sort of word game the Tennessee Supreme Court eschewed in *Miles*. 524 S.W.2d at 659 (quoting *Dickerson*, 168 F. Supp. 899). Justice Harbison's safe harbor for zoning laws would deny double jeopardy protections where they are long established.

Justice Harbison also suggested that proceedings instituted by summons or citations, *see Miles*, 524 S.W.2d at 662 (Harbison, J., dissent), should evade double jeopardy protection. Metro endorses this approach as well. (Metro br. at 14, 28) This can't work either. Many crimes are initiated not upon arrest, but by citation. In fact, Tennessee has an express statutory preference in favor of citations in-lieu of arrest. *See* Tenn. Code Ann. § 40-7-118(b)(1) (LexisNexis 2020); *State v. Walker*, 12 S.W.3d 460, 464 (Tenn. 2000) ("the officer is required to cite and release the misdemeanant in lieu of effecting custodial arrest."). As a result, a crime such as possession of cocaine could result in a citation, not a custodial arrest. *C.f.*, *Walker*, 12 S.W.3d 460. Metro's suggestion could allow for a second prosecution of someone acquitted of possession of cocaine. An officer has tremendous discretion on whether

to cite or arrest. Precious double jeopardy protections cannot rise or fall based on an investigator's judgment call.

With good reason, Justice Harbison's opinion has never had any precedential value.

3. The double jeopardy clause does not hamper public order.

Metro contends that if double jeopardy applies in this case, then it will be significantly hampered in its ability to enforce its laws. (Metro. Br. at 19) ("Under the Court's ruling Metro would have very little ability to combat unlicensed and strip-clubs, unsanitary food establishments, unpermitted beer sales, or unsafe buildings occupied without use and occupancy permits."). It won't.[1]

The double jeopardy clause doesn't limit either what Metro can punish or the extent of the punishment. It imposes no substantive limits on the city whatsoever. Double jeopardy is a procedural protection. The only limit imposed by double jeopardy is that Metro just has one chance to punish.

Undoubtedly, having just one opportunity to punish is a constraint. That is in the nature of a constitutional limit. "Due process standards inevitably produce such an effect, but that tells us no more than that the Constitution imposes burdens on the functioning of government and especially of law enforcement institutions." *Breed*, 421 U.S. at 535 n. 15.

[1]Fines aside, Metro can also utilize the many other tools at its disposal that are truly remedial. *Davis* cited but a few, including stop-work orders, permit revocation, the ability to require proof of compliance. 54 S.W.3d at 270.

Whatever constraints the double jeopardy imposes are constitutionally designed as an important bulwark in defense of liberty.

Double jeopardy is anything but the "severe restriction" described by Metro. (Metro br. at 19) The state addresses homicides and rapes while remaining beholden to the double jeopardy clause. *See* Tenn. Code Ann. §§ 39-13-202, 39-13-503 (LexisNexis 2020). Likewise, the United States is capable of prohibiting acts of nuclear terrorism without needing to skirt double jeopardy limits. *See* 28 U.S.C. § 2332(i) (LexisNexis 2020). Metro is fully capable of addressing unpermitted beer sales (Metro br. at 19) while respecting the Constitution.

Presumably Congress was just as "honestly-motivated" (Metro br. at 19) in addressing nuclear terrorism as Metro was when it prohibited allowing guests to stay in one's home for under thirty days without a permit. The double jeopardy clause applies to the honorable and dishonorable politician alike. If double jeopardy only applied to laws enacted by scoundrels, then it would count for little. The courts are not issued tools with which to gauge the honor of elected officials and scoundrels are rarely so honest as to admit their motivations.

Metro is not being asked to be an experiment. Double jeopardy protections are "so ancient that is impossible to trace its origin." *Miles*, 524 S.W.2d at 658. By now, it can be confidently said that double jeopardy is not incompatible with public order.

Metro has the same duties that comes with the police powers as both the state and United States.

D. *City of Chattanooga v. Davis*, 54 S.W.3d 248 (Tenn. 2001) helps Metro even less.

Subpart 1 demonstrates that the *Davis* opinion, an excessive fines case, does not call into question *Miles*, a double jeopardy case. Subpart 2 establishes that *Davis* only further supports the trial court's conclusion that Metro's fines are a penalty within the meaning of the double jeopardy clause.

1. *Davis* did not complicate *Miles*.

Metro next unnecessarily complicates *Miles* a second time by injecting cases involving when the excessive fines clause applies to a city-fine. (Metro br. at 15-18)

The problem with Metro's argument lies in its continuing belief that *Miles* never reached a result. Metro states that "*Chattanooga v. Davis* is the seminal case establishing the differences between punitive and remedial measures within the context of Tennessee's Constitution." (Metro br. at 16), but Metro then incorrectly insists that "there is not any per se rule,"[2] as if the Court never made a ruling in *Miles*. (Metro br. at 17-21) *Chattanooga v. Davis* may be the seminal case for deciding whether the excessive fines clause applies to fines for violating Metro ordinances. (It concluded that it does. *See Davis*, 54 S.W.3d at 271.) The last word on whether the double jeopardy clause applies was *Miles*. It answered in the affirmative. *See Miles*, 524 S.W.2d at 660.

[2]Metro elsewhere argues that there should be a "per se" rule, only one in its favor: "all zoning ordinances, like in the current case, would be per se civil and not subject to any double jeopardy discussion." (Metro br. at 14)

Unlike the double jeopardy clause, the excessive fines clause is a rarity without a great deal of constitutional history to guide its analysis. As the Tennessee Supreme Court observed in *Davis*, "no other provision like it may be found in the Federal Constitution or in any other modern state constitution." 54 S.W.3d at 257. Given how unusual the provision is, and the degree to which discerning what is criminal and civil has become "an increasingly complex undertaking," *see id.* at 262, a cautious approach is appropriate for the excessive fines clause. Those concerns do not attend the double jeopardy clause. Indeed, the Tennessee Supreme Court has disavowed anything less than a fulsome approach. *See Miles*, 524 S.W.2d at 658 ("Such an ancient right is not to be given a narrow construction."). The more well-established jurisprudence regarding the double jeopardy clause may inform the excessive fines clause analysis, *see Davis*, 54 S.W.3d at 264-65, but the opposite does not hold.

2. *Davis* further supports the trial court's ruling that double jeopardy attached.

Even if *Davis* was on-point, then it would only support the trial court's finding.

The Tennessee Supreme Court held in *Davis* that courts should engage in totality of the circumstances test in order to ascertain whether a fine was a penalty within the meaning of the excessive fines clause. That test asks:

> (1) whether the legislature creating the penalty intended to punish the offender, or;

> (2) whether despite evidence of remedial intent, the sanction is so punitive that its "actual purpose" cannot legitimately be viewed as remedial.
>
> 54 S.W.3d at 264.

Even under this inapplicable test, the fine Metro seeks to impose on Ms. Dreher is not remedial. The language of an ordinance provides strong evidence that the legislature intended that a fine be punishment. "As the plain language of the ordinance shows, the intended purpose is to punish the offender." *Davis*, 54 S.W.3d at 266. In *Davis*, Chattanooga's reckless driving code read that a conviction "shall be punished" by fine. *Id.* at 265. The Tennessee Supreme Court repeatedly noted that that the city's choice of language overwhelmingly tilted this factor towards the view that it was punishment:

- "no more persuasive evidence of an intent to punish may be found except through express language to this effect." *Id.* at 266
- "Again, the intended purpose of this provision, plain on its face through the language used, is clearly to punish the offender." *Id.*
- "a monetary penalty can serve but few truly remedial purposes." *Id.* at 270.
- "express statements of that intent are especially relevant." *Id.* at 266.
- "the use of the term 'punished' in [the challenged code section] is particularly relevant because it strongly indicates that the pecuniary sanction was intended by the City Council to constitute a punitive measure." *Id.*

The Court's reliance on the legislative language is fatal to Metro.

The plain language in the relevant Metro Code provisions establishes beyond any doubt that they are intended to punish. Metro describes its fines as a "penalty." Metro Code § 17.16.070.U.4.l.vi ("The penalty for operating a short term rental property without a permit shall be: (1) A fifty dollar fine as imposed by a court of competent jurisdiction.") (emphasis added). As mentioned above, Metro makes the violation of its zoning laws a crime. A violation of the zoning title "shall be a misdemeanor offense punishable by law." Metro Code § 17.40.610.[3] This language cannot be construed as anything other than punitive. *See Davis*, 54 S.W.3d at 267 ("Indeed, more persuasive evidence of a punitive purpose can hardly be derived except through the Council's own expression that the fine is used to punish that which is made unlawful, prohibited, or made or declared to be a misdemeanor."). The fines Metro seeks to level will not serve to "compensate for any loss that has resulted from a failure to comply with its provisions." *Id.* at 270. In short, they are a penalty.

E. Ms. Dreher risks punishment regardless of how Metro labels it.

Metro's argument rises and falls based on whether its fines are deemed civil or criminal. This approach is fundamentally flawed.

Double jeopardy turns on what is at risk. *See Breed*, 421 U.S. at 527 ("Jeopardy denotes risk."). As the Supreme Court observed, "the

[3]This provision does not specify a particular class of misdemeanor. Under Tenn. Code Ann. § 40-35-110(d), a misdemeanor without specification is a Class A misdemeanor. Class A misdemeanors are punishable by a sentence not to exceed eleven months and 29 days or prison or a fine not to exceed $2,500 or both. Tenn. Code Ann. § 40-35-111(e)(1) (LexisNexis 2020).

Double Jeopardy Clause ... is written terms of potential or risk of trial and conviction, not punishment." *Price v. Georgia*, 398 U.S. 323, 329 (1970). While the term jeopardy is "traditionally associated" with criminal actions, it is the "potential consequences," not "whether it is called 'criminal or civil,'" that guide the double jeopardy analysis. *Breed*, 421 U.S. at 528-30 (citations and quotations omitted). Like protections against vague laws, double jeopardy protections should not be avoided by the simple label "a State chooses to fasten upon its conduct or its statute." *Giaccio v. Pennsylvania*, 382 U.S. 399, 402 (1966).

This is a principle that becomes more vital in light of the growth of civil enforcement. In *Davis*, the Tennessee Supreme Court recognized that "the rise of the modern administrative state has obscured the line separating criminal and civil sanctions. ..." 54 S.W.3d at 262. In *Sessions v. Dimaya*, 138 S. Ct. 1204 (2017), the Supreme Court rejected the idea that the removal of an alien, "a civil matter," should receive a less searching form of vagueness review because the possible penalties were nevertheless "drastic." *Id.* at 1213. Justice Gorsuch wrote words that hold particular relevance today. *See Dimaya*, 138 S. Ct. at 1229 (Gorsuch, J., concurring):

> In fact, if the severity of the consequences counts when deciding the standard of review, shouldn't we also take account of the fact that today's civil laws regularly impose penalties far more severe than those found in many criminal statutes? Ours is a world filled with more and more civil laws bearing more and more extravagant punishments. Today's "civil" penalties include confiscatory rather than compensatory fines, forfeiture provisions that allow homes to be taken, remedies that strip persons of their professional licenses and livelihoods, and the power to commit persons

> against their will indefinitely. Some of these penalties are routinely imposed and are routinely graver than those associated with misdemeanor crimes – and often harsher than the penalties for felonies. ... Given all this, any suggestion that criminal cases warrant a heightened standard of review does more to persuade me that the criminal standard should be set above our precedent's current threshold than to suggest that the civil standard should be buried below it.

Id. at 1229 (emphasis added).

Ms. Draher risks drastic punishment, more serious than many actual criminals face. Metro seeks to penalize Ms. Dreher and take away her ability to support herself by using her property as a short-term rental property. Both property rights and the right to earn a living are of critical importance. These are two rights that the Tennessee Supreme Court has explicitly called "fundamental." *See Livesay v. Tennessee Bd. of Exam'rs in Watchmaking*, 322 S.W.2d 209, 213 (Tenn. 1959) (right to earn a livelihood); *Hughes v. New Life Dev. Corp.*, 387 S.W.3d 453, 474 (Tenn. 2012) (right to own, use, and enjoy private property).

Consider a contrast in penalties as a way of highlighting the flaw in Metro's approach to double jeopardy. If Metro sought the criminal penalties available for a Class C misdemeanor, it could fine up to $50 and incarcerate up to thirty days. *See* Tenn. Code Ann. § 40-35-111(e)(3) (LexisNexis 2020). This is the same penalty available for general speeding, *see* Tenn. Code Ann. § 55-8-152(f)(2) (LexisNexis 2020), and double jeopardy would bar a retrial. *State v. Tommy R. Powell*, No. M2001-02955-CCA-R3-CD, 2002 Tenn. Crim. App. LEXIS 367, at *7

(Tenn. Crim. App. Apr. 24, 2002) (no app. taken). Yet under 17.16.070.U.4.l.vi – the very penalty Metro wishes to see characterized as civil, non-penal, and not subject to double jeopardy – Ms. Dreher faces the same $50 fine as well as a three-year prohibition on further usage of her property as a short-term rental. Which penalties are more serious? By arguing that the less serious penalties available for speeding should trigger double jeopardy but that the second, indisputably more serious penalties are remedial, Metro argues against all logic.

Metro erroneously focuses too much on whether its punishment is called civil and not enough on what Ms. Dreher risks.

CONCLUSION

This Court should affirm the ruling of the Circuit Court below.

Respectfully submitted,

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CERTIFICATE OF COMPLIANCE

The undersigned certifies that this brief complies with the word limit of Tenn. R. App. P. 30 (e) (3) and Tenn. Sup. Ct. R. 46, section 3.02 (1) (c), as applied to amicus curiae briefs.

Based on the word-count function of the word-processing system used to prepare the brief, the brief contains 5061 words, exclusive of the material excluded by Tenn. R. App. P. 30 (e), and the Rule 27 (e) addendum is not included in that count.

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The undersigned certifies that on November 30, 2020, a true and correct copy of the foregoing was served by the Court's electronic filing system and by email, to on:

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